

Rana was given the task of organising terror networks in Gujarat and Maharashtra and that he had been injured before in an encounter with security forces in Kashmir.

Stating that Rana was from Gujaranwala in Pakistan while Johar was from Sargodha, the affidavit says that Javed was in regular touch with a known LET operative, Muzammil, to carry out terrorist activities in Gujarat, which was revealed to the police by a group of 18 terrorists arrested by the Jammu and Kashmir police. Johar had also procured a fake identity card purported to have been issued by the tehsildar of Udhampur district. The affidavit further reveals that Jahan, a Khalsa College student in Mumbai, was also connected with the LET and that Javed, who had earlier converted to Islam, had criminal cases against him in Thane in the early 1990s. Even the car used by the four, a blue Indica, was not registered as a taxi though it was shown as one.

It also states that on July 15, 2004 the mouthpiece of the LET, *Ghazwa Times*, claimed that Ishrat was linked to the LET. But on May 2, 2007, a few

days before Gopinatha filed his petition seeking a CBI probe, the Jamat-ud-Dawa, another mouthpiece of the LET, published an apology to Jahan's mother saying it was wrongly claimed earlier that Jahan was an LET operative. The affidavit says that this about-turn by the outfit on Jahan was done to mislead Indian courts when the encounters were being challenged, and to discredit security agencies.

A debate is on in the state now as to why the state police alone is being targeted when such encounters have been registered in much larger numbers in states like Maharashtra and Uttar Pradesh. For instance, as many as 200 underworld elements were killed under the tenure of the present Mumbai Police Commissioner D. Sivanand when he was heading the Mumbai Crime Branch in 2000-01. But today he is heading the Mumbai Police, far from being a "Vanzara".

Well-known Gujarati writer Gunwant Shah, who favours a uniform national policy on encounters, says, "Why should the encounters of the Gujarat Police alone be probed

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SUSPENDED DIG D.G. VANZARA IS IN JAIL IN CONNECTION WITH THE SOHRABUDDIN CASE

and not of other states? Since 2000, seven main encounters in Gujarat have seen 15 people being killed, much less than many other states. That encounters are generally stage-managed to bump off anti-national elements or unwieldy criminals is well known. So why target Gujarat alone?"

Significantly, the copy of Tamang's report had reached human rights activists many hours before it reached the state Government. Gujarat Minister of State for Home Amit Shah says, "Such a step by a judicial officer has rarely been seen in the past, at least in Gujarat." The human rights lobby is jubilant. Mukul Sinha, a human rights activist and lawyer who is fighting Kausar's case before the high court, says, "Now former police commissioner K.R. Kaushik and other police officials who staged the encounter should be immediately arrested and tried under the law."

The Gujarat Police's encounters have become a headache for Modi Government. The human rights lobby has now begun to use them to weave a net to trap the state Government, which is already battling the Sohrabuddin case in which three IPS officers have already gone in jail. The Government may have got Tamang's report stayed in this case, but a national policy needs to be framed to end the politics of encounters. ■

ISHRAT'S MOTHER KAUSAR BREAKS DOWN AT A PRESS CONFERENCE. SHE HAS SOUGHT A CBI INQUIRY INTO THE ENCOUNTER

